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Case Number: 25PSCV02120 Hearing Date: September 8, 2026 Dept: O

Tentative Ruling

UBER TECHNOLOGIES, LLC, RASIER, LLC,
AND RASIER-CA, LLC'S MOTION TO

COMPEL ARBITRATION is GRANTED;
there is no choice of law provision in this arbitration agreement to allow for
the applicability of CCP section 1281.2. (A proposed order has been filed.)

Background

This case arises from a motor
vehicle accident that happened that happened on June 2, 2025. Plaintiff
AUGUSTINA LIZARRAGA alleges the following against Defendants UBER TECHNOLOGIES,
INC., a corporation; RASIER, LLC, a limited

liability company; RASIER-CA, LLC, a
limited liability company; HERTZ VEHICLES LLC, a limited liability company; THE
HERTZ CORPORATION, a corporation; GUSTAVO LAZCANO TRIGUEROS, an individual;
ARELLANO ZAVALA MANUEL MARCELINO, an individual; MANUEL MARCELINO ARELLANO
ZAVALA, an individual; MARTHA ARELLANO ZAVALA: Plaintiff was a passenger in
Defendant Trigueros' vehicle "owned and/or insured by Defendants UBER

TECHNOLOGIES, INC., RASIER, LLC,
RASIER-CA, LLC, HERTZ VEHICLES LLC, THE HERTZ CORPORATION" when Defendant
TRIGUEROS failed to stop at a red light (looked down at his cellphone) failed
to yield the right of way to Defendants

ARELLANO ZAVALA MANUEL MARCELINO and
MANUEL MARCELINO ARELLANO ZAVALA. Plaintiff alleges that Trigueros' failure to
exercise care caused Plaintiff's injuries.

On June 10, 2025, Plaintiff filed
suit against Defendants for:

1. Negligence
2. Negligence Per Se
3. Negligent Entrustment, Training, Retention

On October 24, 2025, UBER
TECHNOLOGIES, INC., RASIER, LLC AND RASIER-CA, LLC filed their answer.

On November 10, 2025, Trigueros
filed his answer along with a cross-complaint (CC) against the other driver
Defendants (ARELLANO ZAVALA MANUEL MARCELINO AND MANUEL MARCELINO ARELLANO
ZAVALA) for TOTAL INDEMNITY, COMPARATIVE EQUITABLE INDEMNITY, APPORTIONMENT OF
FAULT AND DECLARATORY RELIEF.

On February 19, 2026, the Zavala
Defendants and Defendant Marcelino filed their answer to the CC.

On March 5, 2026, the court issued a
minute order indicating, in part, that the mediation shall be completed by
05/05/2026.

On April 30, 2026, Plaintiff
dismissed Hertz Vehicles, LLC without prejudice.

On May 12, 2026, Plaintiff dismissed
the Hertz Corporation, LLC without prejudice.

On June 4, 2026, the court issued a
court order stating, in part, that mediation is to be completed by 6/5/27. (The
parties filed a stipulation on 6/2/26 to continue various deadlines.)

On June 22, 2026, the instant motion

was filed by UBER TECHNOLOGIES, LLC, Raiser, and AND RASIER-CA, LLC (collectively, "Defendants"). (Rasier, LLC is a wholly owned subsidiary of Uber and Rasier-CA LLC is a wholly owned subsidiary of Rasier, LLC.)

On August 25, 2026, an opposition was filed.

On August 31, 2026, a reply was filed.

Discussion^[1]

Defendants move to compel because Plaintiff expressly agreed to arbitrate any claims against Uber. More specifically, as set forth in both the motion and accompanying declarations/evidence, Plaintiff registered for an Uber Rider account on May 19, 2023; The Terms that were in effect on May 19, 2023, when Plaintiff registered for an account, were the Terms of Use from January 17, 2023; the January 17, 2023 Terms contained an arbitration agreement; that Plaintiff's claims in this case fall within the scope of the Arbitration Agreement; and said arbitration agreement entered into by Plaintiff explicitly state, "The

Federal Arbitration Act...will govern its interpretation and enforcement and proceedings pursuant thereto" (Ex. C to Pare Decl. at Section 2); and that the parties agreed several times that the Federal Arbitration Act (FAA) would govern both the interpretation and the enforcement of dispute resolution procedures.

In opposition, Plaintiff doesn't dispute a valid, enforceable arbitration agreement. Instead, the crux of the opposition is to deny the motion "[b]ecause this matter involves a pending court action with third parties arising from the same transaction and presents a substantial possibility of conflicting rulings on common issues of law and fact, the Court should exercise its discretion under section 1281.2(c)." (Opp. p. 2:14-16.)

Section 1281.2(c) requires a court to order arbitration upon petition by one of the parties to an arbitration agreement, "unless [the court] determines that: [¶] ... [¶] (c) A party to the arbitration agreement is also a party to a pending court action ... with a third party, arising out of the same transaction or series of related

transactions and there is a possibility of conflicting rulings on a common issue of law or fact.” If the court makes such a determination, it: “(1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action ...; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action ... pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action....” (Defendant does not appear to strongly dispute that this case comes within the exception to the general rule of arbitration enforcement specified in section 1281.2(c).)

Here, however, as

correctly set forth in the reply, Plaintiff’s reliance upon CCP section 1281.2(c) is not enough to overcome the clear mandate that the FAA and the AAA Consumer Rules. The FAA contains no such exceptions or carveouts like CCP section 1281.2(c). By its plain language, Section 3 of the FAA states, in relevant part, that “shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement, providing the applicant for the stay is not in default in proceeding with such arbitration.” The matter is rather easily resolvable by focusing on a choice of law provision.

Plaintiff

relies upon *Cronus Investments,*

Inc. v. Concierge Services (2005) 35

Cal.4th 376 to support the position of the applicability of section 1281.2(c). But the arbitration provision in *Cronus* contained something not present here: a choice of law provision.

In *Cronus*, the arbitration clause specified that “The designation of a situs or specifically a governing law for this agreement or the arbitration shall not be deemed an election to preclude application of the [FAA], if it would be applicable.” The agreements also contained a choice-of-law clause providing that “[t]his agreement shall be construed and enforced in accordance with and governed by the laws of the State of California, without giving effect to the conflict of laws provisions thereof.” (*Cronus*, 35 Cal.4th at p. 381.) In fact, in *Cronus*, “The parties seem to agree that the broad choice-of-law provision generally incorporates California law, including the California Arbitration Act (CAA) (§ 1280 et. seq.), of which section 1281.2(c) is a part.” (*Id.*, at p. 387, emphasis added.)

And other seminal cases, though not discussed by the parties, like *Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University*, 489 U.S. 468 (1989), *Mount Diablo Medical Center v. Health*

Net of California, Inc. (2002) 101 Cal.App.4th 711, and Valencia v. Smyth (2010) 185 Cal.App.4th 153 also contained provisions concerning choice of law. So, the presence of the choice of law provision is what created the issues of interpretation in those cases. (See e.g., Note, An Unnecessary Choice of Law: Volt, Mastrobuono, and Federal Arbitration Act Preemption (2002) 115 Harv. L.Rev. 2250, 2250-2251 [that “struggle”] to determine whether these clauses were intended to supply only the general substantive law of the selected forum, or instead to supply both that forum's substantive law and its arbitration rules”]; see also Volt, supra, 489 U.S. 468 at p. 476 [“Interpreting a choice-of-law clause to make applicable state rules governing the conduct of arbitration—rules which are manifestly designed to encourage resort to the arbitral process—simply does not offend the rule of liberal construction set forth in *Moses H. Cone*, nor does it offend any other policy embodied in the FAA.”], emphasis added.) And this governing principle is further illustrated by Defendants’ heavy reliance upon *Victrola 89, LLC v. Jaman Properties LLC* (2020) 46 Cal.App.5th 337, which also discusses the cases cited above. “In accordance with choice-of-law principles, the parties may limit the trial court's authority to stay or deny arbitration under the CAA by adopting the more restrictive procedural provisions of the FAA. The FAA's procedural provisions do not apply unless the contract contains a choice-of-law clause expressly incorporating them.” (Id. at p. 345, internal citations and quotations omitted, emphasis added.) (Plaintiff's attempt at distinguishing the case on factual grounds is inapposite.)

Take another example. In *Maxwell v. Atria Management Co., LLC* (2024) 105 Ca.App.5th 230 (which Defendants cite to in its reply), the arbitration agreement there stated in relevant part: “Any claim or dispute asserted against Atria shall be resolved through submission to individual arbitration as governed by the [FAA], to the maximum extent permitted by law, and/or the Rules of Civil Procedure and Rules of Evidence governing the jurisdiction in which [Atria] is located”—i.e., California.” (Id. at p. 248.) The arbitration agreement further provided that California law “shall govern the interpretation and application of this Agreement and the Residency Agreement, as well as any and all disputes arising out of or relating to this Agreement or the Residency Agreement.” (Ibid.) With such language that stated arbitration will be governed by the FAA “and/or” the California “Rules of Civil Procedure and Rules of Evidence,” the court determined “[t]he language of the arbitration agreement leaves room here for the application of California procedural and evidentiary

rules, including section 1281.2(c).” (Id. at p. 249.)

Here, by contrast, the arbitration agreement makes no reference that the CCP will apply or even may apply. Plaintiff and Uber agreed to the following:

Notwithstanding any choice of law or other provision in the Terms, the parties agree and acknowledge that this Arbitration Agreement evidences a transaction involving interstate commerce and that the Federal Arbitration Act, 9 U.S.C. § 1 et seq. (“FAA”), will govern its interpretation and enforcement and proceedings pursuant thereto. It is the intent of the parties to be bound by the provisions of the FAA for all purposes, including, but not limited to, interpretation, implementation, enforcement, and administration of this Arbitration Agreement, and that FAA and the applicable arbitration provider’s rules shall preempt all state laws to the fullest extent permitted by law. (Pare Decl., Ex. C.)

In fact, the last sentence of that paragraphs unequivocally excludes the applicability of the CCP: “Rules shall preempt all state laws to the fullest extent permitted by law.” Thus, it could not be more clear that the FAA and only the FAA applies. To subscribe to Plaintiffs’ position that the FAA does not govern would require this court to do undermine the very purpose behind the FAA which was to “overrule the judiciary’s longstanding refusal to enforce agreements to arbitrate” (Cronus, supra, 35 Cal.4th 376, 383) and to rewrite the parties’ contract.

All in all, as Plaintiff does not dispute that she entered into a binding arbitration agreement with Uber, does not dispute that she expressly agreed the FAA would govern that agreement, and identifies no controlling authority permitting application of section 1281.2(c), the court grants the Motion to Compel arbitration and stays the current proceedings pending before this Court. (See e.g., Reply p. 8, quoting Cruz v. PacifiCare Health Systems, Inc. (2003) 30 Cal.4th 303, 320 [“when there is a severance of arbitrable from inarbitrable claims, the trial court has the discretion to stay proceedings on the inarbitrable claims pending resolution of the arbitration.”].)

Conclusion

Based on the foregoing, the motion
is granted (and the case is stayed).

[1] Defendants cite to some trial court rulings, but as
those have no precedential value, they are not citable.